Statutory Instrument 84 of 2013.

[CAP. 2:13

Electoral (Special and Postal Voting) Regulations, 2013

Note: *Special voting was abolished by the Electoral Amendment Act, 2014 (Act No. 6 of 2014), so the provisions of these regulations which deal with special voting are longer in force, though they have not been formally repealed. They have been omitted from this compilation of the regulations.*

IT is hereby notified that the Zimbabwe Electoral Commission, in terms of section 192 of the Electoral Act [*Chapter 2:13*], has, with the approval of the Minister, made the following regulations:–

Title

1. These regulations may be cited as the Electoral (Special and Postal Voting) Regulations, 2013.

Interpretation

2. In these regulations—

"form" means the appropriate form set out in the Schedule.

Forms for special vote

3. … [*Omitted. See note above*]

Forms for postal vote

4.(1) The application form for a postal ballot paper in terms of section 73 of the Electoral Act [*Chapter 2:13*], will be in form PV.1 for Presidential, National Assembly and local authority elections.

(2) The letter from the applicant's head of Ministry, head of department or head of station or the head of Zimbabwe's Embassy or diplomatic or consular mission in the foreign State where the applicant is employed shall be in form PV. 2

(3) The postal ballot paper envelope referred to in section 74(1)(c) of the Act will be in form PV.3.

(4) The notification of rejection of application for a postal vote will be in form PV. 4.

Deletion from rolls of postal and special voters

5. The Chief Elections Officer must ensure that the voters roll supplied to each ward centre for the purposes of the ordinary election has a line drawn through every voter in the ward who has been authorised to cast a postal vote or special vote and will inscribe opposite that person's name the letters "P.V." or "S.V." as the case may be.

Applicant for special vote to specify special polling station where they will cast their vote

6. … [*Omitted. See note above*]

Repeals

7. The following provisions of the Electoral Regulations, 2005, published in Statutory Instrument 21 of 2005, are repealed—

(a) section 3(13), (14) and (15);

(b) Forms V.12, V.13 and V.14.

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SCHEDULE (*Section 2*)

FORMS FOR SPECIAL AND POSTAL VOTING

Forms SV.1, SV.2 and SV.3, which relate to special voting, are omitted. See the note on the first page.

FORM PV.1

APPLICATION FOR A POSTAL BALLOT

Section 73 of the Electoral Act [*Chapter 2:13*]

_____

To: The Chief Elections Officer
Private Bag 7782,
Causeway,
Harare

NB : Read instructions overleaf before completing this form.

Section A
Form for Applicant

Your full name in block letters	
Your national identity number	
The place where you are on government service outside Zimbabwe	
To which address do you want your postal ballot paper(s) to be dispatched if you are successful in this application?	

I declare that the answers given to the questions are true and correct and that I am applying for a postal vote because I will be unable to vote at a polling station in my ward and constituency as I will be outside Zimbabwe on duty in the service of the Government of Zimbabwe.

I have attached to this application a copy of my national registration certificate.

Signature of applicant .....

Date when signed .....

Place where signed .....

Signature of witness .....

(See instructions overleaf)

INSTRUCTIONS TO THE VOTER

Read these instructions carefully before you begin to fill in the application for a postal vote.

1. A voter may apply for a postal ballot paper when he or she is unable to vote in his or her ward by reason of being:
   (a) absent from Zimbabwe in the service of the Government of Zimbabwe;
   (b) a spouse of a person referred to in paragraph (a).

2. The application must be accompanied by a letter from:
   (a) the applicant's head of Ministry, head of department or head of station; or
   (b) the head of Zimbabwe's Embassy or diplomatic or consular mission in the foreign country in which the applicant is employed.

Note: This application form must be accompanied by a certified copy of your National ID or the valid passport of the applicant

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FORM PV. 2

FORM OF SUPPORTING LETTER TO ACCOMPANY APPLICATION FOR POSTAL BALLOT

The application must be accompanied by a letter from:

(a) the applicant's head of Ministry, head of department or head of station; or
(b) the head of Zimbabwe's Embassy or diplomatic or consular mission in the foreign country in which the applicant is employed.

Person supplying letter	
Full names	
National Identity Number	
Post held	
Address	
Email address	
Details of applicant	
Applicant's names	
Capacity in which applicant is employed by Government	
Declaration by person supplying letter	
I do hereby declare that the details contained in this application are correct and that the applicant is the person who is seeking a postal vote. Signed: ..... Date:	

FORM PV. 3

BALLOT PAPER ENVELOPE FOR POSTAL VOTE

Section 74(1)(c) of the Electoral Act [*Chapter 2:13*]

This envelope will have on the outside the following details of the voter:

Name	
National Identity Number	
Ward	
Constituency	

FORM PV. 3

REJECTION OF APPLICATION TO CAST BALLOT BY POSTAL VOTE

Electoral Act [*Chapter 2:13*]

To: ..... ID Number .....
(*name of applicant*)

You are hereby advised that your application for a special vote was rejected due to the following reason(s):

1. Not on voters roll ☐
2. Late submission of application ☐
3. Insufficient documentation ☐
4. Not qualified for postal vote ☐

***Note**: Although you may not vote by post you may still cast your vote by personally presenting yourself at a polling station in your ward on the ordinary polling day.*

Issued by: ..... ID No. .....
(*Full names*)

Signature: ..... Date: .....

Checked by: ..... ID No. .....
(*Full names*)

Signature: ..... Date: .....
(*For Chief Elections Officer*)

Official Date Stamp